

Protection of Personal Information Act (POPIA)

Requirements

POPIA is South Africa's data privacy law, effective July 1st, 2021, aiming to protect personal information processed within South Africa and uphold individuals' privacy rights. It applies to both South African and foreign organizations processing personal data within South Africa.

Scope of POPIA:

- **Personal Scope:** Covers all processing of personal information, broadly defined as any information relating to an identified or identifiable living individual.
- **Material Scope:** Applies to all personal data processing activities, including collection, use, storage, disclosure, and deletion of personal information.
- **Territorial Scope:** Applies to organizations located in South Africa and foreign organizations processing personal data within South Africa.

Eight Conditions for Lawful Processing of Personal Information:

POPIA establishes eight conditions that organizations must meet for the lawful processing of personal information. These conditions are:

1. **Accountability:** The responsible party must ensure that the conditions for the lawful processing of personal information are complied with.
2. **Processing Limitation:** Personal information must be processed lawfully and in a reasonable manner that does not infringe on the privacy of the data subject. This includes collecting personal information directly from the data subject, unless certain exceptions apply.
3. **Purpose Specification:** Personal information must be collected for a specific, explicitly defined, and lawful purpose related to a function or activity of the responsible party.
4. **Further Processing Limitation:** Further processing of personal information must be in accordance with or compatible with the purpose for which it was initially collected.
5. **Information Quality:** Personal information must be complete, accurate, not misleading, and updated where necessary, having regard to the purpose for which it is collected or further processed.
6. **Openness:** The responsible party must maintain documentation of all processing operations under its responsibility. Data subjects must be aware that their information is being collected and for what purpose.

7. **Security Safeguards:** The responsible party must secure the integrity and confidentiality of personal information in its possession or under its control by taking appropriate, reasonable technical and organizational measures to prevent loss, damage, unauthorized destruction, and unlawful access to or processing of personal information.
8. **Data Subject Participation:** Data subjects have the right to request access to their personal information and to request correction, destruction, or deletion of personal information that is inaccurate, irrelevant, excessive, out of date, incomplete, misleading, or obtained unlawfully.